



CRM-M-32701 -2026

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IN THE HIGH COURT OF PUNJAB & HARYANA AT
CHANDIGARH

(207)

CRM-M-32701-2026 (O&M)

Date of Decision: 08.06.2026

Solanki Prabhu Bhai Gulshan Bhai @ Kalpesh

.....Petitioner

Versus

State of Haryana

.....Respondent

CORAM: HON'BLE MR. JUSTICE ROHIT KAPOORPresent: Mr. Samay Singh Sandhawalia, Advocate
for the petitioner.

Mr. Arun Kumar Singla, AAG, Haryana.

Mr. Aditya Jain, Advocate for the complainant.

ROHIT KAPOOR, J. (ORAL)

1. The present petition has been filed under Section 483 of the Bharatiya Nagrik Suraksha Sanhit, 2023 (*corresponding to Section 439 Cr.P.C.*), for grant of regular bail to the petitioner in criminal proceedings arising out of case FIR No.73 dated 01.04.2026 (Annexure P-1), for offences punishable under Sections 61(2), 318(4), 318(2), 241 112(2) of the Bharatiya Nyaya Sanhita, registered at Police Station Sushant Lok Gurugram, District Gurugram, Haryana.

2. Learned counsel for the petitioner, at the very outset, submits that the parties have entered into an amicable settlement and the dispute between them stands resolved. It is submitted that the petitioner has been in judicial custody since 12.04.2026 and since the co-accused has already been granted regular bail, therefore, the petitioner also deserves the same relief on



than one month in lodging of the F.I.R.; all offences are triable by the Magistrate and the punishment is not above seven years; no recovery is to be effected from the Petitioner and in such circumstances, no useful purpose would be served by continued incarceration of the petitioner, especially when the matter has been settled and the conclusion of the trial is likely to take considerable time. The attention of this Court is drawn to the affidavit 17.04.2026 (Annexure P-2) wherein the complainant has affirmed the factum of compromise arrived at between the parties and made a categorical assertion has been made that the complainant does not wish to pursue the matter any further and would be bound to get his presence marked in the quashing proceedings. Learned Counsel has placed reliance upon the judgements of the Hon'ble Supreme Court in '**Arnab Manoranjan Goswami v. State of Maharashtra and others**', (2021) 2 SCC 427 and '**Sanjay Chandra v. Central Bureau of Investigation**', (2012) 1 SCC 40, to canvass that bail is the rule and jail is the exception, in our criminal justice system and that of. It is therefore urged that no useful purpose would be served by keeping the petitioner in further custody.

3. Notice of motion.

4. On the asking of the Court, Mr. Arun Kumar Singla, AAG, Haryana accepts notice on behalf of the respondent-State. At this stage, Mr. Aditya Jain, Advocate accepts notice on behalf of the complainant and has filed his *Vakalatnama* in Court today, which is taken on record. Necessary correction is directed to be carried out in the memo of parties, accordingly.

5. Mr. Jain, has corroborated the factum of compromise between the parties and submits that the complainant has no objection if the



that the parties are in the process of filing a quashing petition, shortly.

6. The relief sought by the Petitioner is however, opposed by the learned State Counsel, who submits that the allegations against the petitioner are serious in nature and that is involved in other cases, of like nature. Custody Certificate has been filed, which is taken on record.

7. Heard the submissions made by learned counsel for the parties.

8. Undoubtedly, the antecedents of an accused are required to be taken into account, while considering the application for regular bail. However, this cannot by itself be a ground sufficient to decline the relief, when facts of the case otherwise require that bail should be granted.

9. Having considered the cumulative facts and circumstances involved and especially the undisputed position that the co-accused has been granted the benefit of regular bail; no recovery is to be effected; there is nothing on record to indicate that the petitioner is likely to abscond; and also the fact that the matter stands compromised between the parties, I am of the considered opinion that no useful purpose would be served by further detention of the petitioner as an undertrial.

10. In view thereof, the present petition is allowed and the petitioner is ordered to be released on regular bail on his furnishing adequate bail/surety bonds to the satisfaction of the concerned learned trial Court/Duty Magistrate. However, in addition to conditions that may be imposed by the concerned CJM/Duty Magistrate, the petitioner shall also abide by the following conditions:-



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- (i) The petitioner will not tamper with the evidence during the trial.
 - (ii) The petitioner will not pressurize/intimidate the prosecution witness(s).
 - (iii) The petitioner will appear before the trial Court on the date fixed, unless personal presence is exempted.
 - (iv) The petitioner shall misuse the liberty granted.
 - (v) The petitioner shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer.
 - (vi) The petitioner shall not commit any offence while on bail.
 - (vii) The petitioner shall deposit his passport, if any, with the trial Court.
 - (viii) The petitioner shall not in any manner try to delay the trial.
11. In case of breach of any of the above conditions, and those which may be imposed by concerned CJM/Duty Magistrate, the State/Complainant shall be at liberty to move an application for cancellation of bail before this Court.
12. However, nothing stated above shall be construed as a final expression of opinion on the merits of the case and the trial Court would proceed independently of the observations made in the present case which are only for the purpose of adjudicating the present bail petition.
13. Pending miscellaneous application(s), if any, also stands disposed of.

(ROHIT KAPOOR)
JUDGE

08.06.2026
Anjal